

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
9/9/2023 10:18 PM

Entry Number
5,747

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Andrea E Flint

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

09/07/2023, 09/05/2023, 06/29/2023, 07/31/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

Judge Flint lied on record in court that she (on her words) was not served motion to recuse for cause - after in the morning of that day officer served her motion to recuse personally in the court in presence of me, court reported and multiple witnesses.

Judge explained her lies that at the hearing there is no court reporter and nobody will believe me.

When I stated on record that I am seeking another court due to bias and asking judge to recuse, she stated that I'm saying those words to nobody - because she will ignore my words, and there is no court reporter to record my request. And judge demonstratively ignored my request and continued hearing, during which she ignored all evidences and my requests, and demonstratively did orders in favor of opposing party.

During hearing judge was demonstratively picking her nose on camera instead of reviewing evidences, and then made orders absolutely irrelevant to matter of hearing.

On my question if she could please at least return emergency screener recommendations to order, that she demonstratively removed on previous hearing without any explanations, she said no and ended hearing.

Two days before, on 09/05/2023, Judge was demonstratively running away from me and officer in court room, escaping of being served motion to recuse for cause. As soon as hearing completed, and I asked officer to serve motion to judge - she stand up and quickly ran away from courtroom, trying to escape officer so he will not serve her motion.

Before these ridiculous actions, on 06/29/2023 judge removed emergency screener recommendations from court order, refused to subpoena emergency screener on safety and best interest of the child, refused to review supervised reports and any evidences, threatened me that "you must pay for your mistakes" and ordered me to abandon my son and give up all my son's documents to mother, who was on mental health treatment for 8 years, attempted to abduct my son outside of the United States few years ago, was beating child and threatened to abduct my son outside of the United States and bury my son abroad.

When I asked why judge is making this order that endangers life of my son, judge refused to explain, refused to review provided evidences, simply ignored my question and stated that hearing is ended.

On 07/31/2023 judge demonstratively punished me physically in court during hearing by denying my request for medical emergency due to severe headache, and forcing me to stay on hearing and accept ridiculous orders without ability to participate in hearing due to severe headache.

During that hearing judge made some absolutely ridiculous orders in favor of opposing party, including order to transfer car title for car that is financed and sole registered owner of which is me. I was unable to find corresponding evidence (car title) due to severe headache, and judge quickly made orders that

cannot be executed and are completely irrelevant to evidences, provided to Court.

Those multiple occurrences of misconduct demonstrate extreme prejudice of judge against me. But when I served judge motion to recuse, judge denied it - and even 3 attempts to serve motion to recuse were all denied and judge started simply run away from officer when he is serving her motion.

I'm puzzled - how to replace judge if judge ignores law and lies in the court that she was not served motion to recuse even after she was.

Such determination to stay on case and ignore requests and motions, despite clear prejudice and orders that make harm to child, raise huge question about real reasons of this prejudice. This is very suspicious.

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